

File No.: EXP202210807

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 6, 2022, a complaint was filed with registration number REGAGE22e00044438757 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that the complained party has surveillance cameras on the façade of their residence which, due to their location and orientation, are capable of capturing images of the public road that runs alongside said residence, as well as the access to the complainant's residence, without having authorization for this. It also points out that there is no signage indicating who is responsible for the processing and to what address to direct requests for the exercise of rights.

The complainant provides recordings and images that allow for the appreciation of the location and orientation of the cameras.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 27/10/2022, as evidenced by the acknowledgment of receipt in the file.

THIRD: On December 16, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On December 29, 2022, a response was received by this Agency indicating that the cameras are not in operation.

A copy of an invoice for the purchase of a "simulated dome surveillance camera for deterrence," dated prior to the complaint, is provided.

LEGAL GROUNDS

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Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its

protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

The application of the principle of data minimization in the context of surveillance implies that images of the public road cannot be captured, since the

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Image processing in public places, unless government authorization is obtained, may only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure security purposes.

Under no circumstances will the use of surveillance practices beyond the environment subject to installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intent to intimidate them or affect their private sphere without a justified cause is not permitted.

III

Application of the Principle of Presumption of Innocence

The principle of presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the presentation of evidence and a contradictory procedure in which one can defend their own positions.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: “that the sanction is based on acts or incriminating evidentiary means of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence practiced, freely evaluated by the sanctioning body, must translate into an acquittal pronouncement.

The presumption of innocence governs without exceptions in the sanctioning legal framework and

must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the presentation of evidence and a contradictory procedure in which one can defend their own positions. According to this principle, no sanction may be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

In the present case, although the complaint presented could initially suggest that the accused party was obtaining images of the public road, which would imply a violation of Article 5.1.c of the GDPR, in the terms already described, the documentation provided to the file reveals that the cameras subject to the complaint were not operational, thus not carrying out any data processing that needs to be analyzed to verify its legitimacy.

In this sense, the placement of an informative device that complies with the provisions of Article 22.4 of the LOPDGDD is also deemed unnecessary, since, in reality, no data processing is being carried out.

VI

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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